

SALES TERMS AND CONDITIONS

This Agreement is made between Elizabeth Wightwick Bespoke Sales ('us or we') and _____
(‘you or the Seller’)

Property Details

If the Property is jointly owned please state the names of all Sellers. If the Property is corporately owned or owned by a trust, the full name of the company/trust, the company registration number and registered office address must appear on this form, which must be signed by an authorised signatory.

Flat/House Number _____ Building Name/Number: _____

Street: _____

Town: _____ Post Code: _____

Full name of Owner/s _____
(as at the Land Registry)

Owner's Details Address (if not the same as above):

Flat/House Number: _____ Building Name/Number: _____

Street Name: _____ Post Code: _____

Commission

Sole Agency	1.25% + VAT	£ _____
Multiple Agency	1.5% + VAT	£ _____

I have read and agreed to these Terms and Conditions:

Owner 1

Print Name _____

Signature _____

Date _____

Owner 2

Print Name _____

Signature _____

Date _____



Sole Agency means that you will be liable to pay remuneration to us, in addition to any other costs or charges agreed, if unconditional contracts for the sale of the Property are exchanged:

- with a Purchaser introduced by us during the period of our Sole Agency or with whom we had negotiations about the Property during that period; or
- with a Purchaser introduced by another agent during the Sole Agency Period.

If any other agent introduces a Purchaser to the Seller during the Sole Agency Period, you may be liable to pay remuneration to us as well as to the other agent(s).

Sole Agency Period

The Sole Agency Period shall commence on the date of this Agreement and shall continue until terminated in writing by either party. The Sole Agency Period shall be for a minimum term of 12 weeks.

Multiple Agency means that you will be liable to pay remuneration to us, in addition to any other costs or charges payable under this Agreement, in each of the following circumstances:

- if unconditional contracts for the sale of the Property are exchanged with a Purchaser introduced by us; or
- if unconditional contracts for the sale of the Property are exchanged with a Purchaser to whose attention we brought the availability of the Property.

Termination Either the Seller or the Agent may terminate this Agreement by giving not less than four weeks' written notice to the other party. Any such notice shall not expire earlier than 12 weeks after the commencement of the Sole Agency Period.

Our Fees

The fees payable to us shall be calculated as a percentage of the total sale price achieved for the Property, including any fixtures, fittings, contents, or rights sold with it, and shall be inclusive of VAT at the prevailing rate.

By way of example:

- On a Sole Agency basis, if the Property is sold for £500,000, our commission will be 1.25% plus VAT (£12,000 inclusive of VAT).
- On a Multiple Agency basis, if the Property is sold for £500,000, our commission will be 1.5% plus VAT (£18,000 inclusive of VAT).

The fee payable shall increase or decrease proportionately in accordance with the sale price achieved.

Payment of Fees

Our fees shall become payable upon completion of the sale of the Property. However, where completion is due to take place more than six months after exchange of contracts, our fees shall become payable upon exchange of contracts.

Interest shall be charged on late payment at a rate of 3% above the base lending rate of the Bank of England.

Ready, Willing and Able Purchaser

You will be liable to pay our fee if we introduce a Purchaser who is ready, willing, and able to proceed with the purchase of the Property at the agreed price, but you subsequently withdraw from the sale, instruct us to cease negotiations, or otherwise prevent the transaction from proceeding.

Post-Termination Introductions

Our fee shall remain payable if unconditional contracts for the sale of the Property are exchanged within six months of the termination of this Agreement with a Purchaser who was introduced to you by us, or with whom we had negotiations about the Property during the term of this Agreement.

Withdrawal from Sale

If you withdraw the Property from the market after marketing has commenced, we reserve the right to recover any reasonable costs and expenses incurred in connection with the marketing of the Property, provided that such costs have been previously agreed with you in writing.

Energy Performance Certificates

It is a legal requirement that a valid Energy Performance Certificate (EPC) is obtained prior to the marketing of the Property. We can arrange this on your behalf at a cost of no more than £100 plus VAT.

Sale Board

You authorise us to erect a "For Sale" board at the Property unless you instruct us otherwise in writing. We shall ensure compliance with the Town and Country Planning (Control of Advertisements) (England) Regulations 2007 and accept responsibility for any liability arising from the erection of such board.

Viewings and Access

You agree to allow reasonable access to the Property for the purposes of marketing and conducting viewings at mutually agreed times.

Unless otherwise instructed, you authorise us to accompany viewings. If keys are provided to us, we will take reasonable care in their handling but shall not be liable for any loss or damage except where caused by our negligence.

Sub Agents

In order to maximise exposure of the Property, we may instruct sub-agents to assist in finding a Purchaser at no additional cost to you. You authorise us to share Property particulars with such sub-agents for this purpose. This authority may be withdrawn by you at any time upon written notice.

Money Laundering Regulations

We are required to comply with the The Money Laundering, Terrorist Financing and Transfer of Funds (Information on the Payer) Regulations 2017 and the Proceeds of Crime Act 2002.



You agree to provide all information and documentation reasonably requested to enable us to comply with these obligations. We may retain identification documents and carry out electronic verification checks, which may leave a credit footprint.

We reserve the right to terminate this Agreement if you fail to comply with these requirements. We may also be required to make disclosures to the National Crime Agency where we have reasonable grounds to suspect unlawful activity.

Data Protection

We are registered with the Information Commissioner's Office (ICO) under reference ZA787959. By entering into this Agreement, you consent to our collection, processing, and disclosure of your personal data, including property details, photographs, identification documents, and other relevant materials.

Such data may be used for the purposes of marketing the Property, negotiating a sale or letting, advertising, sharing information with other agents or service providers, and for any other lawful purposes connected with this Agreement.

This consent shall continue both during and after termination of this Agreement. For further information, please refer to our Privacy Policy:

<https://www.elizabeth-wightwick.co.uk/images/pdfs/privacy-policy.pdf>

This clause is in accordance with the Data Protection Act 2018.

Property Information and Marketing

In accordance with the Digital Markets, Competition and Consumer Act 2024, both the Agent and the Seller acknowledge their respective obligations in relation to the accuracy of property information.

The Agent shall take reasonable care to ensure that all property descriptions, particulars, and marketing materials are accurate and not misleading, based on the information available.

The Seller shall be responsible for providing complete and accurate information about the Property and must promptly notify the Agent of any inaccuracies or changes. The Seller agrees to review and approve all marketing materials and notify the Agent of any amendments required.

Complaints

We are committed to providing a high standard of service.

If you are dissatisfied, please contact the Director at 60 High Street, Wimbledon Village, London SW19 5EE.

We are members of the The Property Ombudsman and subscribe to its Code of Practice.

Disclosure Requirements

In accordance with the Estate Agents Act 1979, we declare that we have no personal interest in the sale of the Property unless otherwise notified to you. You agree to inform us immediately if you become aware of any such interest.

Third Party Rights

No third party shall acquire any rights under this Agreement pursuant to the Contracts (Rights of Third Parties) Act 1999.

Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of England and Wales. Any dispute arising under or in connection with this Agreement shall be subject to the exclusive jurisdiction of the courts of England and Wales.

Code of Practice

We are members of the Property Ombudsman scheme, and we subscribe to their code of practice.



Notice of your Right to Cancel

In certain circumstances, you may have the right to cancel this Agreement within 14 days from the date upon which it was signed. To exercise your right to cancel this Agreement, you must inform us in writing which should either be sent by post to Elizabeth Wightwick Bespoke Sales, 60 High Street, Wimbledon SW19 5EE or by email to sales@elizabeth-wightwick.co.uk.

Notice of Cancellation

If you wish to cancel this Agreement in accordance with its terms, you may do so by completing this section and returning the completed form to us by post or email as above.

I/We give you notice that I/We wish to cancel the Contract for you to sell my Property known as

Address

.....

.....

Dated

Signed

For Corporate Sellers

We are officers of the seller duly authorised to sign on behalf of the corporate seller and we confirm that the seller agrees to these Terms and Conditions.

Executed as a deed by

[Name of Executing Company]

Acting by _____

[Name of first Director], a Director and

Director/secretary _____

[Name of second Director/Secretary, a director OR its secretary]

Director _____

[Signature of first Director]

Director OR Secretary _____

[Signature of second Director/Secretary]



Registered in England. Registration no 10660465.